



DECISION

Complaint No. : POS/3196/2025/F-48

Name and address of the complainant : Mr. Salman Amjad, House No. C-50, Block-H, North Nazimabad, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **COMPLAINT AGAINST BUILDER OF SAMAMA CITY FOR HIS FAILURE TO HAND OVER PHYSICAL POSSESSION AND EXECUTION OF LEASE OF PLOT NO. A-42, SAMAMA CITY BOOKED BY THE COMPLAINANT AND PAID ALL THE DUES IN THE YEAR 2011, ETC.**

THE COMPLAINT:

Mr. Salman Amjad in his complaint 19.05.2025 states that he had booked plot No. A-42 admesuring 200 sq. yds. in Samama City scheme of Northern Developers in the year 2006. The total price of the plot was Rs.595,000 and he had paid a total amount of Rs.582,500 including last payment made on 27.10.2011. Despite payment of all dues in 2011 the project remains incomplete and no possession has been handed over to him. Therefore he has solicited intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and the matter was taken up with the Director (District West) and Director, Public Sale Advertisement & Complaint (PSA&C) of Sindh Building Control Authority, Karachi.
3. The Director, PSA&C, SBICA appeared before the Investigating Officer and stated that the matter is sub-judice before the High Court of Sindh at Karachi since 2023. The Deputy Director submitted report dated 06.10.2025 along-with copy of plaint of Suit No. 304/2023 (*Muhammad Rafiq & 03 others vs. Province of Sindh & 09 others*)

FINDINGS:

4. The memo of suit No. 304/2025 and the complaint memo dated 23.05.2025 was perused thoroughly. The pending suit filed by the builder relates to alleged issuance of multiple notices issued to them by multiple government agencies which create unnecessary disputes over ownership of land. Whereas the complaint reflects that the complainant is pursuing his case against the Respondent builder for not honoring the contractual agreement despite receiving full agreed consideration amounting to Rs.582,500/- from him against the booked plot.

5. The response of the Regulatory Agency that due to litigation pending in the High Court they could not take any action on the matter sounds tricky and a deliberate attempt to shirk fiduciary responsibility. Though the matter is sub-judice before the Sindh High Court but it does not restrict the agency from performing its regulatory overseeing responsibility / duty. Still the land is in possession of the builder where they operate the project.

6. As we are investigating the Agency's failure to enforce compliance with the Sindh Building Control Ordinance 1979, we notice that the builder operated, booked and sold units/plots to the public and is now flouting the contractual obligations/ building regulations under various premises, all under the regulator's watch?

7. The Agency cannot justify its inaction and alleged failure to protect the rights of the buyer as guaranteed in the Ordinance 1979 and other relevant rules, enforcement of which is being overseen by the agency.

DECISION:

8. I, in exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date), hereby direct the Director General, Sindh Building Control Authority, Karachi to take necessary action for the redressal of complainant's grievance in accordance with SBCA's law/rules/regulations **within 45 days** without fail.

9. Compliance should be reported within 45 days positively.

Given under my hand and seal of office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 22nd January, 2026